

Court No. - 3

Case :- WRIT - C No. - 22416 of 2022

Petitioner :- Nihaluddin

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Savita Dubey, R S Dubey

Counsel for Respondent :- CSC, Rishu Mishra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Smt. Rishu Mishra, learned counsel for the respondent no. 3.

2. This writ petition has been filed praying for the following reliefs :

"a. Issue writ, order or direction in nature of certiorari quashing the Online R.C. No. 2021010918860736 with account I.D. 20181647A dated 09.09.2021 sum Rupees of 4,19,921/- in pursuance of letter No. 2408 send by Respondent No. 3 as well as R.C. dated 06.07.2022 Under Rule 141 (3) U.P. Revenue Code, 2006 initiated by Respondent No. 2 (Tehsildar, Tehsil Sadar, Gorakhpur).

b. Issue a writ, order or direction in mandamus commanding the Respondent Authority to stay Online R.C. No. 2021010918860736 with account I.D. 20181647A dated 09.09.2021 sum Rupees of 4,19,921/- in pursuance of letter No. 2408 send by Respondent No. 3 as well as R.C. dated 06.07.2022 Under Rule 141 (3) U.P. Revenue Code, 2006 initiated by Respondent No. 2 (Tehsildar, Tehsil Sadar, Gorakhpur)."

3. Learned counsel for the respondent no. 3/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.3 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive

action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 6.8.2022

A. V. Singh